

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of January 15, 2025 (the "Effective Date") by and between Acme Manufacturing Inc., a Delaware corporation ("Customer"), and Northwind Cloud Systems LLC, a Texas limited liability company ("Vendor").

1. DEFINITIONS AND SERVICES

1.1 Services. Vendor shall provide the cloud hosting, monitoring and support services described in each Statement of Work (the "Services").

1.2 Statements of Work. Each Statement of Work is governed by this Agreement and, in the event of conflict, this Agreement prevails.

2. TERM

2.1 Initial Term. This Agreement commences on the Effective Date and continues for twenty-four (24) months (the "Initial Term"), unless terminated earlier in accordance with Section 8.

2.2 Renewal. Following the Initial Term, this Agreement automatically renews for successive twelve (12) month periods (each a "Renewal Term") unless either party gives the other written notice of non-renewal at least ninety (90) days before the end of the then-current term.

3. FEES AND PAYMENT

3.1 Fees. Customer shall pay Vendor the fees set out in the applicable Statement of Work. The initial annual subscription fee is USD 240,000.

3.2 Invoicing and Payment. Vendor shall invoice Customer monthly in arrears. Customer shall pay each undisputed invoice within thirty (30) days after receipt of the invoice.

3.3 Late Payment. Overdue amounts accrue interest at one percent (1%) per month.

3.4 Fee Adjustments. Vendor may increase fees for a Renewal Term by no more than five percent (5%) by giving Customer written notice at least sixty (60) days before the start of that Renewal Term.

4. SERVICE LEVELS

4.1 Availability. Vendor shall maintain Monthly Uptime of at least 99.9% for the production Services.

4.2 Service Credits. If Monthly Uptime falls below 99.9%, Customer is entitled to a service credit equal to five percent (5%) of the monthly fees for each 0.1% shortfall, up to a maximum of thirty percent (30%) of the monthly fees.

4.3 Reporting. Vendor shall deliver a written service performance report to Customer on or before the fifth (5th) Business Day of each calendar month.

5. DATA PROTECTION AND SECURITY

5.1 Security Incidents. Vendor shall notify Customer in writing within seventy-two (72) hours after becoming aware of a Security Incident affecting Customer Data.

5.2 Return of Data. Within thirty (30) days after expiration or termination of this Agreement, Vendor shall return or delete all Customer Data at Customer's written request.

6. CONFIDENTIALITY

6.1 Obligations. Each party shall hold the other party's Confidential Information in confidence and use it only to perform this Agreement.

6.2 Survival. These confidentiality obligations survive for five (5) years after termination or expiration of this Agreement.

7. INDEMNITY AND LIABILITY

7.1 Indemnity. Vendor shall defend and indemnify Customer against third-party claims alleging that the Services infringe intellectual property rights.

7.2 Limitation of Liability. Except for indemnification and confidentiality obligations, each party's aggregate liability is limited to the fees paid or payable in the twelve (12) months preceding the claim.

7.3 Exclusion of Damages. Neither party is liable for indirect or consequential damages.

8. TERMINATION

8.1 Termination for Convenience. Customer may terminate this Agreement for convenience by giving Vendor sixty (60) days' prior written notice.

8.2 Termination for Cause. Either party may terminate this Agreement if the other party materially breaches it and fails to cure the breach within thirty (30) days after written notice of the breach.

9. INSURANCE AND AUDIT

9.1 Insurance. Vendor shall maintain commercial general liability insurance of at least USD 2,000,000 and shall deliver a certificate of insurance to Customer within ten (10) days after the Effective Date.

9.2 Audit. Customer may audit Vendor's compliance with this Agreement once per year upon fifteen (15) Business Days' prior written notice.

10. GENERAL

10.1 Governing Law. This Agreement is governed by the laws of the State of Delaware, without regard to conflict of laws principles.

10.2 Assignment. Neither party may assign this Agreement without the other party's prior written consent.

10.3 Notices. Notices must be in writing and delivered to the addresses stated in the applicable Statement of Work.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Acme Manufacturing Inc. Northwind Cloud Systems LLC